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APRIL 27, 2023

Election Worker Intimidation

The United States is experiencing an increase in the intimidation of election workers, leading to high turnover rates. This could make it more challenging to conduct fair elections.

By Liz Larsen and Julian Ramos, MPP Candidates
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The Big Picture

Misinformation about widespread fraud during the 2020 election fueled violence across the United States. The insurrection at the Capitol on January 6, 2021, was the most prominent example, but it was not the only instance of violent attacks or threats. A survey by the Brennan Center's survey found one in six local election officials have personally experienced threats, and nearly a third said they knew people who had left their jobs at least in part because of safety concerns.[1]

The FBI issued a press release in October 2022 warning that seven states continue to see unusual levels of threats to election workers.[2] Additionally, the Department of Justice launched the Election Threat Task Force to investigate the harassment of election workers amid a rising wave of harassment and intimidation that occurred after the 2020 presidential election.[3] In the first year, the DOJ reviewed over 1,000 incidents. Of these incidents, 58% were concentrated in the swing states of Arizona, Georgia, Colorado, Michigan, Pennsylvania, Nevada, and Wisconsin.[4] While many of the cases were hostile or abusive, they did not fit the narrow definition of a threat of unlawful violence. As a result, only five federal cases have been charged and there has only been one case that handed down a sentence.[5]

The Research You Need to Know

One in six election officials have experienced threats because of their job, and 77% say that they feel these threats have increased in recent years.6 These attacks include racist or gendered harassment and death threats. This has caused some election officials across the country to feel the need to hire personal security or flee their homes.[7,8]

Further, some election workers have decided these threats are too high a cost to continue in their jobs. In one poll, 30% of election officials knew one or more election workers who had left at least in part because of fear for their safety, increased threats, or intimidation.[9] Six in 10 election officials were concerned that threats, harassment, and intimidation against local election officials would make it difficult to retain and recruit election workers.[10] While most election workers agreed that they find "real enjoyment" in their roles, one in five planned to leave before the next election.[11] Among those who planned to leave, one third cited political leaders' attacks on a system they know is fair and honest as a top reason for leaving, and another third cited unnecessary stress.[12]

High election worker turnover rates could make it harder to run fair elections in the United States. Fewer poll workers lead to voters waiting in longer lines at polling places. This has important turnout implications, as research has consistently found a negative relationship between the time it takes to vote and the likelihood of voting in future elections.[13] With insufficient staffing, some polling locations may also have to close or be consolidated with other locations, making it more challenging for people to vote.[14] This is especially problematic for voters of color and other marginalized communities that already face higher barriers to voting.

In response, states have begun to propose legislation criminalizing social media threats of election workers.[15] The Michigan attorney general has publicly announced her intent to prosecute anyone who illegally threatens election officials.[16] Additionally, some states have introduced legislation to make it easier to prosecute people who harass election workers. Bills in Maine and Vermont would increase the penalty for threatening an election official with violence and make it easier to prosecute those who harass election workers.[17] Additionally, Washington's Senate approved a bill that would make harassing election workers a felony, punishable by up to five years in prison.[18]

Senators Susan Collins and Joe Manchin have also introduced legislation that would double federal penalties for individuals threatening or intimidating election officials.[19] The federal government has also added some new sources of additional funding to improve the security of election workers.[20,21]

Despite these actions, almost 80% of election officials think the federal government is either doing nothing to support them or taking some steps but not doing enough.[22] The financial support that Congress has provided only represents a fraction of what is needed.[23] Election workers have indicated that they feel the most support at the local level, but still, nearly one-third of local election officials feel that their local government could be doing more to support them.[24]

The Human Impact

The depth of these attacks against election workers was highlighted in the hearings by the congressional panel investigating the insurrection at the Capitol on January 6, 2021. Democrat, Republican, and nonpartisan election workers alike described the attacks and harassment they faced during the 2020 election. For two women, Ruby Freeman and Wandrea ″Shaye″ Moss, these attacks upended their lives.[25] Freeman and Moss are mother and daughter and both election workers in Atlanta. Moss testified that they had to go into hiding after Former President Donald Trump and his lawyer, Rudy Guilliani, falsely accused Moss and Freeman of pulling fraudulent ballots from a suitcase in Georgia.[26] These allegations were quickly debunked, but they spread widely and led to violent threats toward her and her family. Moss was forced to hide her identity and leave her job. At its worst, protesters tried to enter a relative of Moss and Freeman′s house in search of them.[27] Eventually, Moss and Freeman quit their positions.

Moss, who is Black, has received death threats with strong racial and gendered components. Moss told the committee, ″It′s turned my life upside down. I no longer give out my business card… I don′t want anyone knowing my name. I don′t go to the grocery store at all. I haven′t been anywhere at all. I′ve gained about 60 pounds. I just don′t do nothing anymore.″[28] She continued, ″I′ve lost my name. I′ve lost my reputation. I′ve lost my sense of security.″

Moss won a John F Kennedy Profile in Courage Award, given to those who show the ″courage to protect and defend democracy in the United States and abroad.″[29] She has also successfully sued one conservative media network, settling for an undisclosed sum.[30]

Key Takeaways

- Since the 2020 election, there has been a rise in harassment, threats, and abuse targeted at election workers. One in six election officials has experienced threats because of their job, and 77% say that they feel these threats have increased in recent years.
- This harassment has resulted in increased turnover in election officials; 30% of the officials know of one or more election workers who have left at least in part because of fear for their safety, increased threats, or intimidation.
- High turnover is concerning because it could make it harder to run fair elections in the United States. Shortages of election workers could cause long lines at the polls or the closure and consolidation of polling locations, making it harder to vote.

More Information

For more information, we recommend the following reports and articles:

- Voter Intimidation and Election Worker Intimidation Resource Guide
- Poll of Local Election Officials Finds Safety Fears for Colleagues — and Themselves
- Violent Threats to Election Workers Are Common. Prosecutions Are Not.
- A Georgia election worker who was falsely accused by Trump supporters will testify about threats.

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